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POWERING THE FUTURE

GENERAL CONDITIONS OF CONTRACT

TCZL-SCM-GCC-R2 (2025-26)

Doc No: TCZL-SCM-013-R2 Dated 07th April 2026

PURCHASE/WORK ORDER GENERAL CONDITIONS OF CONTRACT (Purchase Order and/or Work Order)

These General Conditions of Contract **("GCC")** govern the purchase of Goods and/or performance of Services by Suppliers under Purchase Orders **("PO")** or Work Orders **("WO")** issued by Tecso Charge Zone Limited **("TCZL")**, including all incidental or related activities. The GCC shall be read with any special conditions contained in the PO/WO. In case of any conflict between these GCC and special conditions, the special conditions shall prevail to the extent of inconsistency, discrepancy and contradictions.
Unless otherwise.

1) DEFINITIONS

Unless the context and circumstances otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them:

a) **"Agreement"** means the PO/WO, these GCC, and all other documents forming part of the contractual arrangement.

b) **"Goods/Work Products"** means all materials, articles, equipment, machinery, products, or other deliverables to be supplied.

c) **"Services/Works"** means all services, tasks, obligations, including incidental activities, to be performed under the PO/WO.

d) **"Supplier/Contractor"** means the entity to whom the PO/WO is issued.

e) **"TCZL Group Companies"** includes TCZL's parent, subsidiaries, affiliates, and joint ventures.

f) **"Force Majeure"** shall have the meaning as defined under Clause 22.

g) **"Applicable Laws"** means all relevant statutes, regulations, guidelines, rules, notifications, ordinances, and judicial orders.

h) **"Warranty Period"** means the duration specified in the Agreement during which the Supplier is obligated to repair, replace, or rectify any defects in the Goods, Work Products, equipment, or materials supplied, at no additional cost to TCZL.

i) **"Performance Security"** means a financial guarantee, in the form and amount specified in the Agreement, provided by the Supplier to secure the proper performance of its obligations under the Agreement. This may include a bank guarantee, performance bond, or other approved instruments.

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j) **"Latent Defect Liability"** means the Supplier's responsibility for defects that were not apparent or discoverable at the time of completion or during the Warranty Period but become evident after that period. The liability extends for the duration specified in the Agreement and covers the cost of rectifying such defects.

2) SCOPE OF SUPPLY, CONTRACT AND SERVICES

a) The Supplier/Contractor/Manufacturer shall perform the Services and/or deliver the Goods in strict accordance with the specifications, timelines, quality standards, and other requirements set out in the PO/WO and as per applicable laws and best industry practice. The Supplier shall provide all personnel, equipment, materials, supervision, and resources necessary to perform its obligations.

b) Where Services are provided on a day-rate basis, Supplier shall on request provide time sheets and breakdowns of time spent and shall charge on the basis of an 8-hour day and apply pro-rata for periods of less than 8 hours.

c) Permits and Approvals: The Supplier shall obtain, maintain, and comply with all permits, licenses, clearances, and approvals required under Applicable Laws at its own expense. If requested by the Supplier, TCZL shall make effort to assist the supplier in complying with such requirements in a timely and expeditious manner, without any dilution of the Supplier's responsibility in this regard.

d) Title and Risk: Property in the Goods shall pass to TCZL only upon acceptance at the designated site as per the agreed INCOTERM. Risk in the Goods remains with the Supplier until such acceptance.

e) Supplier's Responsibility: The Supplier shall bear responsibility for all loss, damage, or deterioration to the Goods or Services until final acceptance by TCZL as per the agreed INCOTERM.

3) PAYMENTS

a) The mode of payment shall be specified in the PO/WO, and payments will be credited as per milestones achieved, payment procedures defined & approved processes for any additional work or change.

b) The Supplier/Contractor/Manufacturer will clarify suitably to TCZL before raising any interim or final invoices and all invoices shall be ratified by TCZL before processing payments.

4) DELIVERY, DELAY & EXTENSION OF TIME

a) Timely Delivery: Time is of the essence. The Supplier shall deliver the Goods/Services within the timelines specified.

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b) Delay & Extension:

i) If the Supplier foresees delay, it shall notify TCZL in writing within 7 days of receipt of PO/WO, stating reasons and expected duration.

ii) Failure to inform TCZL within the stipulated timeline would mean that the Supplier/Contractor/Manufacturer has accepted the timeline mentioned in the PO/WO and there is no delay.

iii) TCZL may, at its sole discretion, grant an extension of time with or without Liquidated Damages ("LD") and Denial Clause.

c) Liquidated Damages: LD @ 1% per week of delay (excluding taxes) of delayed Goods/Services value, capped at 10%, (excluding taxes) shall apply for delay attributable to the Supplier/Contractor/Manufacturer.

d) Denial Clause: No price escalation, including statutory or exchange rate variations, shall apply to delayed deliveries for delay attributable to the Supplier/Contractor/.

e) Price Reductions: TCZL shall be entitled to reductions in price on account of statutory reductions after the original delivery date or on account of delay attributable to the Supplier.

f) Any approved extension shall be formalized through a written acknowledgement and shall in no manner be considered to be a waiver of responsibility.

5) SUB-LETTING/SUB-CONTRACTING

a) No Supplier/Contractor/Manufacturer is allowed to sublet or sub contract, a part or full scope of his PO/WO placed on him, unless and until it is expressly agreed & accepted by TCZL in writing. The Sub-Contractor profile and structure along with their capacity & capabilities will be provided prior to such permission for approval by TCZL.

b) The Supplier/Contractor/Manufacturer will be fully liable for all actions/inactions of the sub-contractor.

6) INSPECTION, TESTING & ACCEPTANCE

a) The Supplier shall give adequate notice, of one (1) week or as mutually agreed period, in writing to TCZL about the date and place at which the goods will be ready for inspection/ testing, as provided for in the PO.

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b) TCZL shall have ninety (90) days (inspection period) wherein TCZL shall have the option to either accept or reject the goods if goods are excess in quantity or the goods are damaged then TCZL can reject goods not in confirmation with specification.

c) Transfer of title to TCZL of Goods shall not constitute TCZL 's Acceptance of those Goods.

d) TCZL shall provide Supplier within the (Inspection Period) notice of any Goods or Services that are rejected, together with the reasons for such rejection.

e) TCZL or its authorized representative shall be entitled to carry out inspection of material and workmanship at Supplier's premises or at his sub-contractor's premises at all reasonable times during execution of contract. Such inspection, examination, and testing, if made, shall not absolve the Supplier from his obligations under the contract.

f) All costs related to readiness of goods shall be borne by the Supplier. Supplier shall be responsible for providing assistance such as labour, materials, electricity, fuels, stores, apparatus, instruments at his cost, as may be required and as may be reasonably demanded to carry out such tests effectively.

g) The supplier shall maintain and ensure necessary safety measures as required for inspection and tests to enable the inspection Agency for performing their inspection, if any test equipment is found to be not complying with proper safety requirements, then the inspection Agency may withhold the inspection, till such time the desired safety requirements are met.

h) OEM/Product supplier should provide their quality check plan, verification, and compliance report w.r.t quality check and assurance.

i) OEM/Product supplier should provide design life of supplying charger, share equipment replacement plans, operating life plans/life extension plans, share their product obsolescence management plans (equipment/components, control algorithms etc).

j) Banned items should not be used in the product and product packing must be as per Indian Chemical Regulation.

k) Furthermore, Supplier must update their user manual for efficient disposal of products after their useful life in accordance with principles of segregation of recyclable and/or hazardous wastes.

l) Acceptance shall not absolve the Supplier of latent defects liability.

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7) PACKAGING, DELIVERY & STORAGE

a) The Goods shall be securely packed to prevent damage during transit, in compliance with industry and carrier standards.

b) All packages shall be clearly marked with PO/WO details, consignee information, and handling instructions.

c) Supplier shall securely protect and pack the goods against loss, damage of or corrosion on transit.

d) No charges will be allowed for freight, transportation, insurance, shipping, storage, handling, demurrage, cartage, packaging or similar charges unless provided for in the applicable Purchase Order or otherwise agreed to in writing by TCZL.

e) Packing shall allow for easily removable / checking on site and comply with the Carrier's conditions of packing or as established trade cases and packing material shall be supplied free of charge, unless otherwise agreed.

f) One set of test certificate, packing list and non- negotiable copy of Invoice (duly signed) shall invariably be kept inside the packing case.

g) In case of Contractors, the materials received at site through him will be stored well and ensure it doesn't ingress with dust & vermin at site till they are installed.

h) TCZL may inform the Contractor to store the materials supplied by TCZL properly, safely to avoid damage at no extra cost.

8) QUALITY MANAGEMENT

a) The Supplier/Contractor/Manufacturer will provide all quality control procedures documents for reviews and inspections. If they are ISO 900/2015/23 certified, all relevant documents will be maintained & presented to TCZL when asked for such Quality Objective & Scope of QMS including quality policy.

9) WARRANTIES AND REPRESENTATIONS

a) The Supplier warrants that:

i) The Services and Work Product(s) shall at all times comply with TCZL's specifications if any and all the applicable laws.

ii) Goods/Services shall be free from defects, fit for intended purpose, and conform to specifications.

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iii) Performance shall be professional, competent, and in line with industry best practices.

iv) No infringement of third-party intellectual property shall arise from the use of Goods/Services.

v) The Supplier shall strictly comply with all applicable statutory laws, rules, and regulations during execution of services, including construction, electrical, transport, and waste management activities.

vi) The Supplier must ensure adherence to the following but not limited to specific Acts and Rules which are applicable to them as per the scope of work basis on the awarded contract:

(1) The Building and Other Construction Workers' (Regulation of Employment and Conditions of Service) Rules, 1998

(a) Applicable for all construction and project execution activities.

(b) Contractor shall ensure welfare, safety, working conditions, and registration of all construction workers.

(2) Central Electricity Authority (CEA) Regulations, 2023

(a) Mandatory for all electrical installation, commissioning, inspection, operation, and maintenance work.

(b) Includes provisions related to safety procedures, earthing, maintenance practices, and qualified personnel deployment.

(3) Environment Protection Act, 1986

(a) The contractor must take all necessary steps to prevent pollution, emissions, or environmental damage.

(b) Waste disposal, emissions, and environmental impact must comply with applicable limits.

(4) Hazardous and Other Wastes (Management and Transboundary Movement) Rules, 2016

(a) Any hazardous waste generated must be handled, stored, and disposed of as per these rules.

(b) Necessary authorizations, labelling, and manifest documentation must be maintained.

(5) Battery Waste Management Rules, 2022

(a) Applicable if any battery waste (e.g., used lead-acid or lithium-ion batteries) is generated.

(b) Contractor shall ensure collection, safe disposal, or return to authorized recyclers.

(6) E-Waste (Management) Rules, 2022

(a) All electrical and electronic waste must be disposed of through authorized recyclers.

(b) Service Provider shall maintain records of e-waste generation and ensure legal compliance.

(7) Motor Vehicles (Amendment) Act, 2019

(a) All transportation of goods, equipment, or personnel must comply with this Act.

(b) Drivers must hold valid licenses, and vehicles must be roadworthy and properly insured.

vii) Non-compliance with any of the above laws may lead to penalties, blacklisting, or termination of the contract.

viii) The Supplier shall be solely responsible for ensuring that all subcontractors and deployed personnel also comply with these regulations.

ix) All consents, approvals, licenses necessary for performance are obtained.

x) Supplier shall provide any Services in accordance with the requirements set out in this PO and in compliance with any TCZL codes or policies as notified to Supplier by or on behalf of TCZL from time to

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time and any applicable laws, using personnel with knowledge and experience which is sufficient for the tasks assigned to them. Any Supplier's disclaimers, any limitation of liability and/or any reduction of any applicable statute of limitations shall be deemed of no effect unless explicitly set out in this PO.

xi) The Supplier has read, understood and will comply with the Suppliers Code of Conduct.

xii) Entering into this type of Agreement is in the ordinary course of the Supplier's business with customers such as TCZL.

xiii) The Services and/or Work Products are being offered for purchase at market rates or otherwise in accordance with the Supplier's internal pricing policies and practices.

xiv) During the provision of Services contemplated by this PO, the Supplier and none of the individuals with significant responsibility for providing services to TCZL shall be a partner, executive officer, member of the Board of Directors, or a direct or indirect substantial equity owner (or otherwise with control), of TCZL or Group Company.

xv) For the purpose of this clause, a person or entity shall be deemed a **"substantial equity owner"** of an entity if they or it:

(1) Is a general partner in such entity, if such entity is a limited partnership.

(2) Holds a 5% or greater direct or indirect equity interest in (or the power, by contract or other relationship, to direct the affairs or management of) such entity, if such entity is publicly traded.

(3) Holds a 20% or greater direct or indirect equity interest in (or the power, by contract or other relationship, to direct the affairs or management of) such entity, if such entity is privately held; and

(4) The aggregate amounts contemplated to be paid by TCZL to Supplier under this PO, and under all other Agreements between TCZL and Supplier in effect within any fiscal year period, shall not exceed 10% of the Supplier's total revenues during such period.

xvi)In the event of Supplier's non-conformance with any of the above provisions or any other terms of the PO, Supplier shall correct any such non-conformance within 15 days and if unable to do so promptly shall (at TCZL's sole discretion) replace the Work Product or re-perform the nonconforming Services (as relevant) or promptly refund any fees paid by TCZL and Supplier shall indemnify TCZL for all costs and expenses TCZL incurs as a result of correcting, replacing, or re-performing the Services or Work Products.

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10) INVOICES

a) All invoices, packages, and, where applicable, shipping documents shall clearly mention the following:
   i) TCZL's Purchase Order (PO) number
   ii) The name of the requisitioner
   iii) The date
   iv) Description of the Services and any Work Product(s).

   All shipments shall be made on a prepaid basis and must be accompanied by a packing slip.

b) The amounts specified in the PO shall clearly indicate applicable tax components, including VAT or any other equivalent local taxes, which shall be payable by TCZL at the applicable rates and in accordance with prevailing laws, subject to the Supplier providing a valid GST invoice (or equivalent).

c) Invoices shall be payable by TCZL via electronic bank transfer within 60 (sixty) days from the date of receipt of a correct, undisputed, and properly due invoice. If the Supplier is a registered MSME entity and has provided the necessary supporting documents, the payment period shall be 45 (forty-five) days from the date of receipt of a correct, undisputed, and properly due invoice.

d) TCZL shall not be liable for any amounts not expressly specified in the PO. Furthermore, TCZL reserves the right, without prejudice to its other rights or remedies, to set off any amounts owed by the Supplier to TCZL against any amounts payable by TCZL to the Supplier under this PO.

11) INDEMNIFICATION

The Supplier shall indemnify, defend, save, and hold harmless TCZL, its group companies, and each of their respective partners, directors, officers, employees, and agents (collectively, the **"Indemnified Parties")** from and against any and all claims, demands, actions, suits, proceedings, damages, losses, liabilities, fines, penalties, costs, and expenses (including, without limitation, reasonable legal and professional fees and court costs) incurred or suffered by any of the Indemnified Parties arising out of, relating to, or resulting from (i) any act, error, or omission of the Supplier in the performance or non-performance of this Purchase Order (PO) (ii) any actual or alleged breach of any obligation, representation, or warranty contained in this PO by the Supplier including intellectual property infringement if any; (iii) any act or omission by the Supplier's directors, officers, employees, agents, affiliates, or subcontractors in connection with the execution or failure to execute the obligations under this PO; or (iv) any claim brought by a third party, including but not limited to governmental authorities, in connection with the Supplier's goods, services, conduct, or breach of applicable laws.

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The Supplier's obligations under this clause shall survive the termination or expiration of this PO and shall be in addition to any other rights or remedies available to the Indemnified Parties under applicable law or equity

12) LIMITATION OF LIABILITY

a) Neither TCZL nor any of its group companies shall be liable under or in connection with this Purchase Order (PO), whether in contract, tort (including negligence or breach of statutory duty) or otherwise, for:
   i) Any loss of profits, loss of revenue, loss of business, loss of goodwill, or loss of anticipated savings (in each case, whether such loss is direct or indirect); and/or
   ii) Any indirect, incidental, consequential, punitive, or special damages, whether or not TCZL or its relevant group companies were advised of, knew of, or ought reasonably to have known of the possibility of such damages.

b) The total aggregate liability of TCZL and its group companies, collectively, arising out of or in connection with this PO, whether in contract, tort (including negligence or breach of statutory duty) or otherwise, shall be limited, in respect of events occurring in any calendar year, to the total charges for the Services paid by TCZL under this PO in that calendar year.

c) Notwithstanding any other provision of this PO, the Supplier's recourse in respect of any claim or obligation arising under or in connection with this PO shall be limited solely to the assets of TCZL. The Supplier shall have no recourse to, and shall not bring any claim against:
   i) Any other TCZL group company; or
   ii) Any individual partner, director, employee, or agent of TCZL or any TCZL group company.

d) For the avoidance of doubt, any losses, damages, or expenses incurred by TCZL group companies in connection with this PO or its subject matter shall be deemed to have been incurred by TCZL itself.

13) PENALTY

If the Supplier does not adhere to the terms of this Agreement and / or if the Supplier's personnel or workers at TCZL projects sites are found to be violating the site safety rules and regulations as per this Agreement, TCZL shall have the right at its discretion to take action as per the following Escalation Matrix:

a) **1st Default/Violation:** Issuance of Written Warning by TCZL.

b) **2nd Default/Violation:** Fine of INR 10,000/- (Rupees Ten Thousand Only) shall be imposed by TCZL.

c) **3rd Default/Violation:** Fine of INR 25,000/- (Rupees Twenty Five Thousand Only) shall be imposed by TCZL.

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d) **4th Default/Violation:** TCZL shall have right to impose a fine amounting to INR 50,000/- (Rupees Fifty Thousand Only), and/or terminate the Agreement and/or blacklist the Supplier.

The actions by TCZL in the above Escalation Matrix do not limit but are in addition to the other legal and contractual rights of TCZL.

14) CONFIDENTIAL INFORMATION

a) "**Confidential Information**" means with respect to either Party, any and all information in written, representational, electronic, verbal (provided such oral information was shared in writing by each party following the oral disclosure) or other form relating directly or indirectly to the present or potential business, operation or financial condition of or relating to the Disclosing Party (including, but not limited to, information identified as being proprietary and/or confidential or pertaining to, pricing, marketing plans or strategy, volumes, services rendered, customers and suppliers lists, financial or technical or service matters or data, and any information which might reasonably be presumed to be proprietary or confidential in nature). All Confidential Information provided by the Disclosing Party to the Receiving Party in connection with the fulfilment of the transaction contemplated in this Agreement shall be the exclusive property of the Disclosing Party and shall not be disclosed to Third Party other than with the prior written consent of disclosing Party. The Parties may utilize the Confidential Information shared hereunder solely for the discharge of their obligations under this Agreement, and in no manner use or reference the information to create similar products or services of their own or for reverse engineering.

b) The Receiving Party shall incorporate and implement the best relevant industrial practices to ensure the safeguarding of the Confidential Information. Such safeguards shall be no less restrictive than those applied by the Receiving Party for its own confidential information.

c) An information disclosed under this Agreement shall not be deemed to be confidential or proprietary which:
   i) Is or becomes part of the public domain through no act or omission of the Receiving Party.
   ii) Was in the Receiving Party's lawful possession prior to the initial disclosure by the Disclosing Party.
   iii) Is lawfully disclosed to the Receiving Party by a Third Party without restriction on disclosure.
   iv) Is independently developed by the Receiving Party.
   v) Is properly disclosed pursuant to a statutory obligation, the order of a court of competent jurisdiction or that of a competent regulatory authority, provided that (to the extent not prohibited from doing so under the Applicable law) prior written notice of such required disclosure is furnished to the Disclosing Party as soon as practicable in order to afford it an opportunity to seek a protective order.

d) During the Term, and for a period of five (5) years following the expiration or termination of this PO for any reason, each Party shall hold all Confidential Information relating to the other Party in confidence and shall

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treat such Confidential Information with the same degree of care that it uses to protect its own confidential information, which shall be no less than a reasonable degree of care. Supplier shall not, at any time during or after the Term, use any Confidential Information received from TCZL for any purpose other than carrying out its obligations under this PO.

e) Upon TCZL's request, and upon the expiration or termination for any reason of this PO, Supplier shall promptly return to TCZL or, if so directed by TCZL, destroy all TCZL Confidential Information (in every form and medium – to the extent technologically possible), and certify such return or destruction in writing.

f) Notwithstanding the foregoing, unless prohibited by law, Supplier understands and agrees that TCZL may disclose Supplier Confidential Information received from Supplier to other TCZL Network Member, and TCZL Network Member persons and third parties providing services on its behalf who may collect, use, transfer, store or otherwise process it in the various jurisdictions in which they operate for purposes related to the provision of the services, to comply with regulatory requirements, to check conflicts, for quality, risk management, or financial accounting purposes and/or for the provision of other administrative support services. TCZL shall be responsible to Supplier for maintaining the confidentiality of Supplier Confidential Information.

15) DATA PROTECTION

a) For the purposes of this Clause 11:

i) **"Data Protection Laws"** means all applicable laws and regulations governing or related to the access to, transfer of, storage of, or breach of data that can be used to identify any individual.

ii) **"TCZL Personal Data"** means any data obtained by the Supplier under or in connection with the performance of its obligations under this PO, that can be used to identify an individual, and any other personal data or data that is covered by the Data Protection Laws, and

iii) **"processing", "data processor", and "personal data"** shall have the meaning given in the European Data Protection Directive 95/46/EU.

b) With respect to TCZL Personal Data, TCZL appoints Supplier as data processor. Supplier will not assume any responsibility for determining the purposes for which and the manner in which TCZL Personal Data is processed. Supplier will and shall procure that all sub-contractors will:

i) Process TCZL Personal Data only in accordance with instructions from TCZL.

ii) Unless otherwise requested by TCZL, process TCZL Personal Data only to the extent, and in such manner, as is necessary for the performance of Supplier's obligations under this PO.

iii) Implement appropriate, technical and organizational measures to protect TCZL Personal Data against unauthorized or unlawful processing and against accidental loss, destruction, damage, alteration or disclosure.

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iv) Notify TCZL of any unauthorized or unlawful processing or any accidental loss, destruction, damage, alteration or disclosure of TCZL Personal Data as soon as it becomes aware and keep TCZL informed of any related developments; and

v) Comply with all Data Protection Laws in the processing of TCZL Personal Data.

16) INJUNCTIVE RELIEF

a) Supplier acknowledges it would be difficult to fully compensate TCZL for damages resulting from any breach of this term and condition. Accordingly, in the event of any breach of this term and condition that TCZL shall be entitled to temporary and/or permanent injunctive relief to enforce such provisions.

b) Supplier hereby agrees and acknowledges that it will be impossible to measure in money the damage that would be suffered by TCZL if the Supplier fails to comply with any of the obligations herein imposed under Clause 10 and Clause 11 on them and that in the event of any such failure, TCZL will be irreparably damaged and will not have an adequate remedy at law. TCZL shall, therefore, be entitled (in addition to any other remedy to which it may be entitled in law or in equity) to injunctive relief, including specific performance, to enforce such obligations, and if any action should be brought in equity to enforce any of the provisions of this Agreement, none of the parties hereto shall raise the defence that there is an adequate remedy at law.

17) DEFAULTS, BREACHES, AND TERMINATION

a) **Termination**

i) TCZL may terminate this PO in whole or in part, with or without cause, at any time and without liability, upon thirty (30) days written notice to Supplier.

ii) In the event of any termination, Supplier shall promptly refund to TCZL any fees paid for Services or Work Product(s) that have not been provided as on the effective date of termination, and no further fees shall be due from TCZL in respect the Services or Work Product(s).

iii) Termination or expiry of this PO for any reason shall not affect the accrued rights and obligations of the parties at the date of termination or expiry (as applicable).

b) **Termination due to Breach, Default, and Insolvency**

In case the Supplier undergoes insolvency, receivership, neglects, defaults or expresses inability or disinclination to honour his obligations relating to the performance of the contract or ethical standards or any other obligation that substantively affects TCZL's rights and benefits under the contract, it shall be treated as a breach of Contract. Such defaults could include inter-alia:

i) Default in Performance and Obligations:

If the Supplier fails to deliver any or all of the Goods or fails to perform any other contractual obligations

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(including Code of Integrity or obligation to maintain eligibility and Qualifications based on which contract was awarded) within the period stipulated in the contract or within any extension thereof granted by TCZL.

ii) Insolvency:

If the Supplier being an individual, or if a firm, any partner thereof, shall at any time, be adjudged insolvent or shall have a receiving order or order for the administration of his estate made against him, or shall take any proceeding for composition under any Insolvency Act for the time being in force, or make any conveyance or assignment of his effects, or enter into any assignment or composition with his creditors, or suspend payment or if the firm be dissolved under the Partnership Act

iii) Liquidation:

If the Supplier is a company being wound up voluntarily, or by order of a Court, or a Receiver, Liquidator, or Manager on behalf of the Debenture-holders is appointed, or circumstances shall have arisen which entitle the Court or Debenture-holders to appoint a Receiver, Liquidator or Manager.

c) **Notice for Default:**

i) As soon as a breach of contract is noticed, a show-cause **'Notice of Default'** shall be issued to the Supplier, giving two weeks'/fourteen (14) days notice, reserving the right to invoke contractual remedies.

ii) After such a show- cause notice, all payments to the Supplier would be temporarily withheld to safeguard needed recoveries that may become due on invoking contractual remedies.

d) **Termination for Default:**

i) In the event of unsatisfactory resolution of 'Notice of Default' within two weeks of its issue as per sub-clause above, TCZL if so decided, shall by written Notice of Termination for Default sent to the Supplier, terminate the contract in whole or in part, without compensation to the Supplier.

ii) Such termination shall not prejudice or affect the rights and remedies, including under sub-clause below, which have accrued and/ or shall accrue to TCZL after that.

iii) Unless otherwise instructed by TCZL, the Supplier shall continue to perform their obligations under the contract to the extent not terminated. All warranty obligations, if any, shall continue to survive despite the termination.

e) **Contractual Remedies for Breaches/Defaults or Termination for Default:**

If there is an unsatisfactory resolution within this period, TCZL shall take one; or more of the following contractual remedies:

i) Temporary withhold payments due to the contractor till recoveries due to invocation of other contractual remedies are complete.

ii) Call back any loaned property or advances of payment, if any, with the levy of interest at the prevailing rate.

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iii) Recover liquidated damages and invoke denial clause for delays.

iv) Encash and/or Forfeit performance or other contractual securities.

v) Prefer claims against insurances, if any.

vi) Terminate contract for default, fully or partially including its right for Risk-and-Cost Procurement

f) **Risk and Cost Procurement:**

i) In addition to termination for default, TCZL shall be entitled, and it shall be lawful on his part, to procure Goods same to those terminated, with such terms and conditions and in such manner as it deems fit at the **"Risk and Cost"** of the Supplier.

ii) Such 'Risk and Cost Procurement' must be contracted within one (1) year from the breach of Contract.

iii) The Supplier shall be liable for any loss which TCZL may sustain on that account provided the procurement, or, if there is an agreement to procure, such agreement is made. The Supplier shall not be entitled to any gain on such procurement, and the manner and method of such procurement shall be in the entire discretion of TCZL.

iv) It shall not be necessary for TCZL to notify the Supplier of such procurement. It shall, however, be at the discretion of TCZL to collect or not the security deposit from the firm/ firms on whom the contract is placed at the risk and cost of the defaulted firm.

v) Regarding the Goods which are not readily available in the market and where procurement difficulties are experienced, the period for making risk procurement shall be nine months instead of six months provided above.

vi) Initiate proceedings in a court of law for the transgression of the law, tort, and loss, not addressable by the above means.

g) **Closure of Contract:**

i) The contract shall stand closed upon successful performance of all obligations by the firm, including completion of warrantee obligations and final payment.

ii) If no claim is received within 18 months from last supplies/services, then no claim shall be entertained thereafter.

18) CONSEQUENCES OF TERMINATION

Notwithstanding any other provision contained herein to the contrary or otherwise and without prejudice to any other rights and remedies available to TCZL under the PO/WO and the Applicable Laws, TCZL shall be entitled to terminate the PO/WO, if the main contract is terminated for any reason whatsoever by the employer or in case

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of breach of any of the Representation or Warranties or undertakings or obligations by the Supplier or in the event of any default by the Supplier. Upon termination the Supplier shall:

a) cease all further work, except for such work as TCZL may specify for the sole purpose of protecting that part of the Works already executed, except those to be assigned to TCZL.

b) Deliver to TCZL the parts of the Works executed by the Supplier up to the date of Termination.

c) Assign to TCZL all right, title and benefit of the Supplier to the Works as at the date of Termination, and, as may be required by TCZL.

d) Deliver to TCZL, all Supplier's documents including drawings, specifications and standards and other documents prepared by the Supplier, if any as at the date of Termination.

e) No amount shall be due and payable to the Supplier in the event of termination of the PO / WO unless and until the Works as contemplated herein are completed in entirety, Taking Over Certificate for the entire Works have been issued and all payments finally due on any account to TCZL and/or other contractor(s) engaged in respect of the outstanding Works have been finally paid and settled and TCZL has been discharged from all liabilities in respect thereof. On completion of the outstanding Works by TCZL and/or other contractor(s), the cost, expenses, charges (including damages paid to the employer) incurred for completing such outstanding Works either itself or through other contractor(s), shall be determined and if the aggregate of:

   i) The sum which is already paid to the Supplier under this PO/WO plus the costs, expenses, charges (including damages paid to the employer) subsequently incurred by TCZL in completing the outstanding Works, either itself or through other contractor(s), exceeds the Supplier (corresponding to the certified work executed by the Subcontractor till the date of termination as duly audited by the Auditor of TCZL), then the Supplier shall be liable for paying such excess amounts, which is over and above the Subcontract Amount (corresponding to the certified work executed by the Subcontractor till the date of termination as duly audited by the Auditor of TCZL), to TCZL. The Supplier undertakes to pay such amounts within 30 (thirty) days of receipt of the demand notice issued by TCZL.

   ii) The sum which is already paid to the Supplier under this P O / W O plus the costs, expenses, charges (including damages paid to the employer) subsequently incurred by TCZL in completing the outstanding Works, either itself or through other contractor(s), equals the Subcontract Amount (corresponding to the certified work executed by the Subcontractor till the date of termination as duly audited by the auditor of TCZL), then no payment shall be due and payable by either Party to the other.

   iii) The sum which is already paid to the Supplier under this PO / WO; plus the costs, expenses, charges (including damages paid to the Employer) subsequently incurred by TCZL in completing the outstanding Works, either itself or through other contractor(s), is less than the subcontract amount (corresponding to the certified work executed by the Subcontractor till the date of termination as duly audited by the Auditor

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of TCZL), then TCZL shall pay such amount to the Supplier within 30 (thirty) days of receipt of the demand notice issued by the Supplier.

f) Notwithstanding any other provision contained herein to the contrary or otherwise and without prejudice to any other rights and remedies available to TCZL under the PO/WO and the Applicable Laws, no amount shall be due and payable to the Supplier in case any of Supplier's breach or default which results in the termination of this Work Order / Subcontract and /or the Main Contract.

g) The Supplier undertakes that in the event of Termination of the PO/WO, the Performance Security shall be kept valid and subsisting until the expiry of 60 (Sixty) days beyond the Defect Liability Period from the completion of the entire Works.

19) INSURANCE

a) Supplier shall maintain in effect throughout the duration of this PO ("Term") such insurance, issued by a nationally recognised insurance company of sound financial status, as is sufficient to cover all liabilities to which it may be subject in relation to this PO.

b) Supplier shall deliver certificates of insurance evidencing required coverage upon TCZL's request.

c) The Supplier shall indemnify, defend, and hold harmless TCZL, its affiliates, directors, officers, employees, and agents from and against any and all claims, losses, damages, liabilities, costs, and expenses (including reasonable legal fees) arising out of or resulting from the Supplier's failure to obtain or maintain the required insurance coverage, or arising from any breach of its obligations under this Clause.

d) Such indemnity shall apply irrespective of whether the insurance maintained by the Supplier is insufficient to cover the said claims or whether such claims exceed the policy limits.

20) ASSIGNMENT

a) Neither this PO nor any interest herein may be assigned, delegated, transferred or otherwise dealt with by Supplier without the prior written consent of TCZL.

b) TCZL may assign any or all of its rights hereunder to any TCZL group companies.

21) ANTI-BRIBERY AND CORRUPT PRACTICES

a) TCZL may terminate this PO with immediate effect if the Supplier is in breach of the Anti-Corruption Laws as more particularly set forth below.

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b) Each party agrees to comply with all applicable laws and regulations related to anti-bribery and corruption, including but not limited to the Prevention of Corruption Act (India), U.S. Foreign Corrupt Practices Act (FCPA) and the UK Bribery Act.

c) Each party represents and warrants that it has not engaged, and covenants that it will not engage, in any corrupt practices, including bribery, kickbacks, or any other form of unlawful inducement, in connection with this Agreement.

d) Each party shall ensure that its employees, agents, and representatives comply with the anti-bribery provisions of this Agreement and shall be responsible for any violations committed by such individuals.

e) Each party agrees to maintain accurate books and records that fairly and accurately reflect all transactions and dispositions of assets related to this Agreement. Supplier shall allow TCZL to inspect such records upon reasonable notice.

f) Each party shall implement and maintain effective anti-bribery policies and procedures and provide appropriate training to its employees to ensure compliance with the anti-bribery laws applicable to this Agreement.

g) A breach of the anti-bribery provisions of this Agreement by either party shall constitute a material breach, and the non- breaching party may terminate this Agreement with immediate effect.

h) The Supplier shall indemnify TCZL and any TCZL Group Companies against any and all third party claims, demands, damage, expenses (including reasonable legal fees) arising out of or in connection with this PO to the extent caused by any breach of any Anti-Corruption Laws, negligent act or omission, fraud or wilful misconduct of the Supplier, its employees, subcontractors or agents during the provision of Services to TCZL.

i) Each party shall promptly notify the other party of any known or suspected violation of the anti-bribery provisions of this Agreement and shall cooperate fully in any investigation of such violations.

22) GOVERNING LAW

This PO shall be governed by, and construed in accordance with, the laws of Jurisdiction Vadodara, Gujarat, India, and any dispute arising in connection with this PO shall be subject to the exclusive jurisdiction of the courts of the Jurisdiction, to which TCZL and Supplier hereby submit.

23) BINDING EFFECT

a) Performance by Supplier shall be deemed acceptance of all the terms and conditions set forth herein.

b) Any alterations, modifications or additions made to this PO will be deemed of no effect unless expressly accepted in writing and signed by an authorised TCZL person.

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24) NO USE OF NAME

Supplier shall not use, or permit the use of, the name, trade name, service marks, trademarks, or logo of TCZL or of any TCZL group companies in any form of publicity, press release, advertisement, or otherwise without TCZL's prior written consent.

25) FORCE MAJEURE

a) Notwithstanding anything contained in the contract, neither the Supplier nor the TCZL shall be held responsible for total or partial non-execution of any of the contractual obligations, should the obligation become unreasonably onerous or impossible due to occurrence of a 'Force Majeure' which directly affects the obligations to be performed by TCZL or the Supplier.

b) Such events include war, revolutions, insurrections, riots, civil insurgency, sabotage, acts of public enemy, fires, explosion, epidemics, pandemics, floods, earthquake, or acts of God, restrictions by Govt. authorities; over which the Supplier or TCZL has no control.

c) The party claiming to be affected by force majeure shall notify the other party in writing without delay, within two weeks on the event/circumstances happens and on the cessation of such event/circumstance.

d) Extension of time sought by the Supplier along with supporting evidence and so granted by TCZL for the supply/work affected, if any, shall not be construed as waiver in respect of remaining deliveries.

e) Rescheduling of deliveries on account of force majeure conditions, if so agreed by TCZL, will not entail the Supplier to claim any increase in the price on whatsoever account.

f) Notwithstanding above provisions, TCZL shall reserve the right to cancel the order/ Contract, wholly or partially, in order to meet the overall project schedule and make alternative arrangements. If deemed necessary, TCZL may takeover partly processed material at a mutually agreed price.

26) NOTICES

a) Wherever these Conditions provide for the giving or issuing of any notices, approvals, certificates, consents, determinations, requests, and discharges, unless otherwise specified; such notices, approvals, certificates, consents, determinations, requests and discharges shall be in writing and the words 'notify', 'approve', 'certify', 'confirm' 'determine', 'request' or 'discharge' shall be construed accordingly.

b) All communication from TCZL to the Supplier shall be delivered by hand (against receipt) or sent by Registered A.D. Post or by courier service or through official electronic mail to the Authorized Officer of the Supplier as notified by the Supplier from time to time.

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c) All communication from the Supplier to TCZL shall be delivered by hand (against receipt), or sent by Registered A.D. Post or by courier service or through official electronic mail as follows:

i) Day-to-day communication shall be addressed to TCZL's Authorized Representative at the Project Site.

ii) Contractual correspondence or notice for claim which may involve financial implications either now or later shall be addressed to the Authorized Signatory of TCZL at its Registered Office at Vadodara, Gujarat, India at the following address:

*"**TecSo Charge Zone Limited,***
8th Floor, Office No.816, Notus I.T Park, Vikram Sarabhai Marg, Sarabhai Campus, Vadodara - 390023, Gujarat State, India."

iii) Further it is expressly agreed that no notice as regards claims, if any, from the Supplier which may involve financial implications either now or at a later date shall be treated as valid unless the same is served within 14 (Fourteen) days of occurrence of the event and served to the TCZL's Authorized Representative at its Registered Office in Vadodara, Gujarat, India and that any notice not served within the above specified time limit or not served to TCZL's Authorized Representative shall be treated as invalid.

27) TAXES AND DUTIES

a) Unless otherwise specified the Accepted PO/WO Amount shall be inclusive of all taxes, duties, levies, royalties, cess, octroi, service tax, etc. with breakup of all taxes, duties, levies, royalties, cess, octroi, service tax etc. made available.

b) The Supplier shall register itself, as a Registered Dealer under ST / Works Contract Tax Act and with other relevant authorities in the State where work is to be executed, prior to qualifying for bidding or within 30 (thirty) days of date of the Letter of Intent or the Work Order or the Subcontract and provide their registration numbers to TCZL. Such registration shall remain valid until the expiry of Defects Liability Period.

c) The Supplier shall submit copies of Quarterly tax return, duly certified by a qualified, competent, and independent Chartered Accountant, showing certified amount billed by it to TCZL during the Quarter under consideration as his turnover. The Supplier shall also submit other documents as necessary to enable TCZL to claim this Turnover as allowable deduction.

d) In case the Supplier is unable to submit copies of Quarterly Tax Return and other documents as stated above, indirect tax liability arising due to such failure on the part of the Supplier including penalty charges, if any, shall be paid by the Supplier to TCZL or shall without prejudice to any other method of recovery, be deducted by TCZL from any amount due or which may become due to the Supplier or shall be recovered as a debt.

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e) If the Supplier does not have Service Tax number because of his / her taxable turnover being lower than threshold limits as specified in Service Tax Rule, 2005 (Registration of Special Category of Person), the same shall be mentioned on every invoice raised by the Supplier along with aggregate value of taxable service till the date of last invoice issued in a Financial Year.

f) All invoices of the Supplier shall be in the form of Tax Invoices and shall be raised from the State in which the Site is located, and taxes prevailing shall apply and following them shall be the responsibility and liability of the Supplier.

g) The Supplier shall issue serially numbered Tax Invoice as required under the rule 4A of the Service Tax Rules 1994 within prescribed time indicating the name and address of Service Provider and Service Recipient, the Registration no. (PAN based STC No.) of the Supplier, Description of Services, Category under which services are provided and details of service tax, Primary Education Cess & Secondary & Higher Education Cess separately.

h) The Supplier is fully aware that the activity-based service provided by him/her is pure service contract and TCZL will have supervision right only for the quality control purpose and ultimate control over the work force/ Labours deployed for providing the service will always rest with Supplier.

i) The Supplier is fully aware that TCZL is not liable to deposit service tax under Reverse charge Mechanism as provided under section 68(2) of The Finance Act, 1994, as services provided by the Supplier are not Manpower Supply Service.

j) The Supplier undertakes to comply with all applicable Tax Laws as in force from time to time and TCZL shall not be held responsible in any manner whatsoever for the Supplier non-compliance of various Tax Laws & Rules, being framed from time to time.

k) In case any statutory levies like labour cess, royalties, Works Contract Tax etc. are recovered by the Employer from TCZL's Bills on whole of the Contract Value of the Main Contract or in case such levies are paid by TCZL on whole of the Contract Value of the Main Contract, proportionate recoveries shall be made by TCZL from the Supplier's invoices.

l) Income Tax shall be deducted as per the provisions of Income Tax Act, 1961 as applicable from time to time.

m) The Supplier shall have its books of accounts audited by a qualified, competent, and independent Chartered Accountant and submit certificate of audit from such independent Chartered Accountant. In addition, TCZL shall have the right to audit the books of accounts of the Supplier.

28) ENVIRONMENTAL PROTECTION

a) In addition to the strict compliance of all the Applicable Laws and TCZL's manual and instructions for 'Safety, Health and Environment'; more particularly as stipulated in the relevant Appendix, the Supplier shall ensure

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and take all required steps to protect the environment (both on and off the Site) and to limit damage and nuisance to people and property resulting from pollution, noise, and other results of its operations.

b) The Supplier shall ensure that emissions, surface discharges and effluent from the Supplier / activities shall not exceed the values stated in the Specification or prescribed by the Applicable Laws.

29) LABOUR LAWS

a) The Supplier shall comply with all the relevant labour Laws applicable to the Supplier personnel, staff, employees, and labour including Laws relating to their on-site as well as off-site employment, health, safety, welfare, immigration and emigration, and shall allow them all their legal rights.

b) The Supplier shall require its employees to obey all Applicable Laws, including those concerning safety at work.

c) The Supplier shall, in relation to the labour employed by him, adhere to the provisions of the Industrial Disputes Act and rules and regulations made there under and such other Acts, as may be applicable.

d) The Supplier shall be liable for paying compensation for any claims arising out of accidents to his labour under the Indian Workmen's Compensation Act. TCZL shall not be liable for reimbursement of medical expenses of the Supplier and /or his labour.

e) The Supplier shall have to submit compulsory valid Workmen's Compensation policy within 1-2 days after receipt of work order.

30) WAGE RATES AND CONDITIONS OF LABOUR AND STAFF

a) The Supplier shall be liable and responsible for payment of wages and observing conditions of labour and staff as per the Applicable Laws and Rules.

b) The Supplier shall in the manner provided by Law, pay to every employee/ workman employed by him in connection with this PO/WO, wages at rate not less than the minimum rate of wages fixed by the appropriate Government, under the Minimum Wages Act, for the class of employees engaged in the works of like the one under the PO/WO.

c) Where the Minimum Wages are not fixed, the Supplier shall pay to every employee/ workman wage at a rate not less than the fair wages, prescribed by the authorities concerned for this work or works of similar nature in the areas in which this Work Order/ Subcontract is to be executed.

d) Where neither the Minimum Wages nor fair wages have been fixed, the Supplier shall pay to every employee/ workman wages not less than those prevailing in the area for the respective category of employee/ workman, where this Work Order/ Subcontract is to be executed.

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e) TCZL shall not in any manner have any obligations, responsibilities, or liabilities, whatsoever, towards any of the Supplier's Personnel, staff, employees, or labour nor shall TCZL entertain any claim from Supplier in this regard.

31) SUPPLIER'S SUPRITENDENCE

a) Throughout the execution of the Works, and as long thereafter as is necessary to fulfil the Supplier's obligations, the Supplier shall provide all necessary Superintendence to plan, arrange, direct, execute, manage, inspect, and test the work.

b) Superintendence shall be given by enough persons having adequate knowledge of the operations to be carried out (including the methods and techniques required, the hazards likely to be encountered and methods of preventing accidents) for the satisfactory and safe execution of the Works.

32) SUPPLIER'S PERSONNEL

a) The Supplier's Personnel shall be appropriately qualified, skilled, competent, experienced, and trained in their respective trades or occupations.

b) The Supplier/ shall remain solely responsible for and shall not be relieved or absolved in any manner whatsoever of its obligation's duties, responsibilities, or liabilities under the PO/WO and that TCZL shall not be liable for the same in any manner whatsoever.

c) TCZL's Engineer may require the Supplier to remove (or cause to be removed) any person employed on the site or Works, including the Supplier's Representative, if applicable, who:

i) persists in any misconduct or lack of care.

ii) carries out duties incompetently or negligently.

iii) fails to conform with any provisions of the Work Order / Subcontract, or

iv) persists in any conduct which is prejudicial to safety, health, or the protection of environment. If appropriate, the Supplier shall then appoint (or cause to be appointed) a suitable replacement.

33) SEVERABILITY

If any term, covenant, condition, or provision of this term and condition is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remainder of the provisions shall remain in full force and effect and shall in no way be affected, impaired, or invalidated.

34) SURVIVAL

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All clauses that by their nature contemplate performance or observance subsequent to termination or expiration of the Agreement will survive termination or expiration of this Agreement and continue in full force and effect, including but not limited those relating to Confidentiality and Data Protection.

35) ENTIRE AGREEMENT

This GCC, along with PO/WO and related documents, constitutes the entire agreement and supersedes prior agreements or understandings.

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